



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PUDC-24-89 | North Range Business Park – Assigned Zoning
Date: December 9, 2024

Background:

The item for consideration is an *Assigned Zoning*. The annexation for the property was introduced on November 12, 2024. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 12/9/2024
- Public Services Committee 12/17/2024
- Second reading 12/23/2024
- Public Services Committee 1/08/2025
- Third and final reading 1/13/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their December 2, 2024 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items introduced on 11/12/2024:

- PUDC-24-89: Annexation
- PUDC-24-89: Assigned Zoning (for all other parcels)

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF AG AGRICULTURAL FOR LAND BEING ANNEXED TO THE CITY AT LOT 1, BLOCK 1, NORTH RANGE SUBSTATION, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF HAPPY JACK ROAD, WEST OF BRUNS WAY)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne is initiating the annexation of property, including property legally described as:

Lot 1, Block 1, North Range Substation, Laramie County, Wyoming.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on December 2, 2024, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as AG Agricultural.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION
DECEMBER 2, 2024
STAFF REPORT

FILE: PUDC-24-89: North Range Business Park – Assigned Zoning

LOCATION: Northwest of the intersection of Roundtop Road and I-80

REQUEST: Assigning zones to property that is being annexed to the City

ANNEXATION APPLICANT: City of Cheyenne

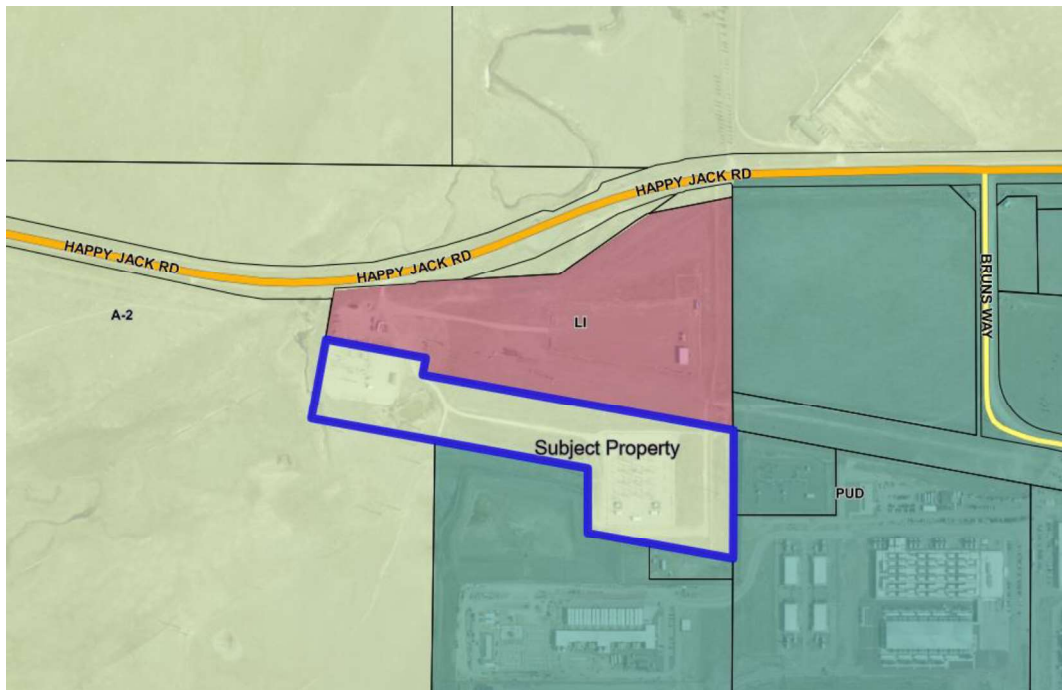
OWNERS: Cheyenne Light Fuel and Power Co

ZONING: County A-2

FUTURE LAND USE: Mixed-use Employment

PURPOSE: To establish City zoning districts concurrent with annexation.

PREPARED BY: Seth Lloyd, AICP, Senior Planner



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land being annexed (as shown in the attached annexation map) located northwest of the intersection of Roundtop Road and I-80 to AG Agricultural for land currently zoned County A-2 Agricultural, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

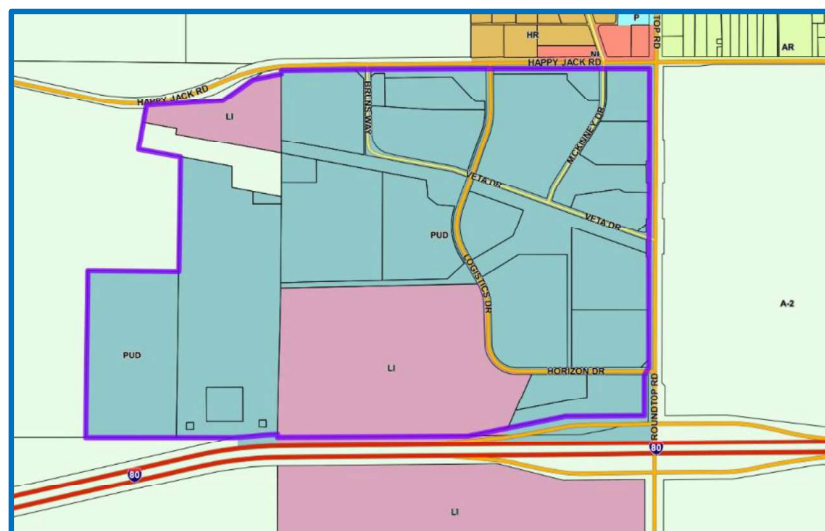
The City of Cheyenne is initiating the annexation of the North Range Business Park. This business park has been using Cheyenne water and sewer service as an outside user. On typical outside user agreements (including the ones entered into here), annexation when eligible is a condition. Recent annexation south of this property has made the property eligible for annexation. Due to an oversight with the required notice, the County A-2 zoned parcel was overlooked. This project is only for the parcel zoned A-2 Agricultural, as all other parcels already have been through the assigned zoning process.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zones for the area being annexed are County LI Light Industrial, County PUD Planned Unit Development, and County A-2 Agricultural. The LI and PUD zoned areas were assigned City zoning with a separate application. The most analogous city zone for the County A-2 zone is AG Agricultural. The Assigned Zoning policy document is attached to the staff report as attachment number two.



Current Zoning

This project **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

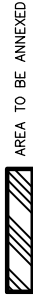
STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land being annexed northwest of the intersection of Roundtop Road and I-80 to AG Agricultural, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Annexation Map
2. Assigned Zoning Policy Document

LEGEND



APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming, this ____ day of _____, 2024.

Mayor _____ ATTEST: _____ City Clerk

ANNEXATION AREA

TOTAL AREA: 836.79 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 0%

Adjacent per Wyoming State Statute 15-1-402 (b) (across I-80 highway) annexation and ratio to total perimeter - 19%

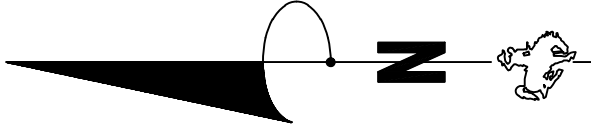
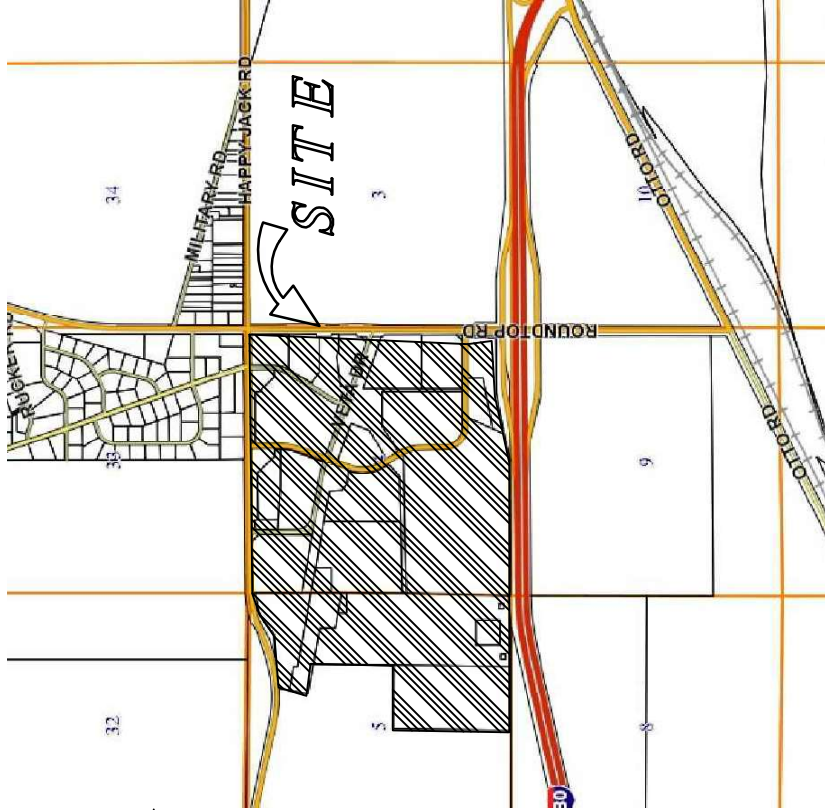
ANNEXATION DESCRIPTION

Lot 3, Block 1, North Range Business Park;
Lots 1-2, Block 6, North Range Business Park, 3rd Filing;
Lots 1-2, Block 8, North Range Business Park, 3rd Filing;
Lots 1-5, Block 9, North Range Business Park, 3rd Filing;
Lots 1-6, Block 10, North Range Business Park, 3rd Filing;
Lots 1-2, Block 11, North Range Business Park, 3rd Filing;
Lot 2, Block 12, North Range Business Park, 4th Filing;
Lot 3, Block 1, North Range Business Park, 5th Filing;
Lots 1-2, Block 13, North Range Business Park, 6th Filing;
Lots 2-4, Block 15, North Range Business Park, 8th Filing;
Lot 1, Block 17, North Range Business Park, 10th Filing;
Lot 1, Block 16, North Range Business Park, 11th Filing;
Lot 1, Block 18, North Range Business Park, 12th Filing;
Lots 1-3, Block 1, North Range Business Park, 13th Filing;
Lot 1, Block 1, North Range Substation;
Lot 1, Block 1, BHE Ready Subdivision;
AND

The rights of way for Diamond Creek Drive, Veta Drive, Logistics Drive, McKinney Drive, and Horizon Drive as platted with North Range Business Park, 3rd Filing (noting that "Diamond Creek Drive" as shown on the plat was renamed "Bruns Way" on April 7, 2020, by action of the Board of County Commissioners), Laramie County, Wyoming.

FILING RECORD

EXHIBIT A
ANNEXATION MAP
OF
NORTH RANGE BUSINESS PARK,
LARAMIE COUNTY, WYOMING



VICINITY MAP

(NOT TO SCALE)

PREPARED APRIL 2024

CERTIFICATE OF SURVEYOR

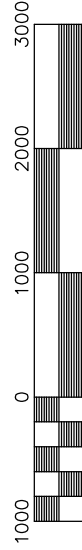
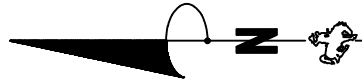
I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

ANNEXATION DESCRIPTION

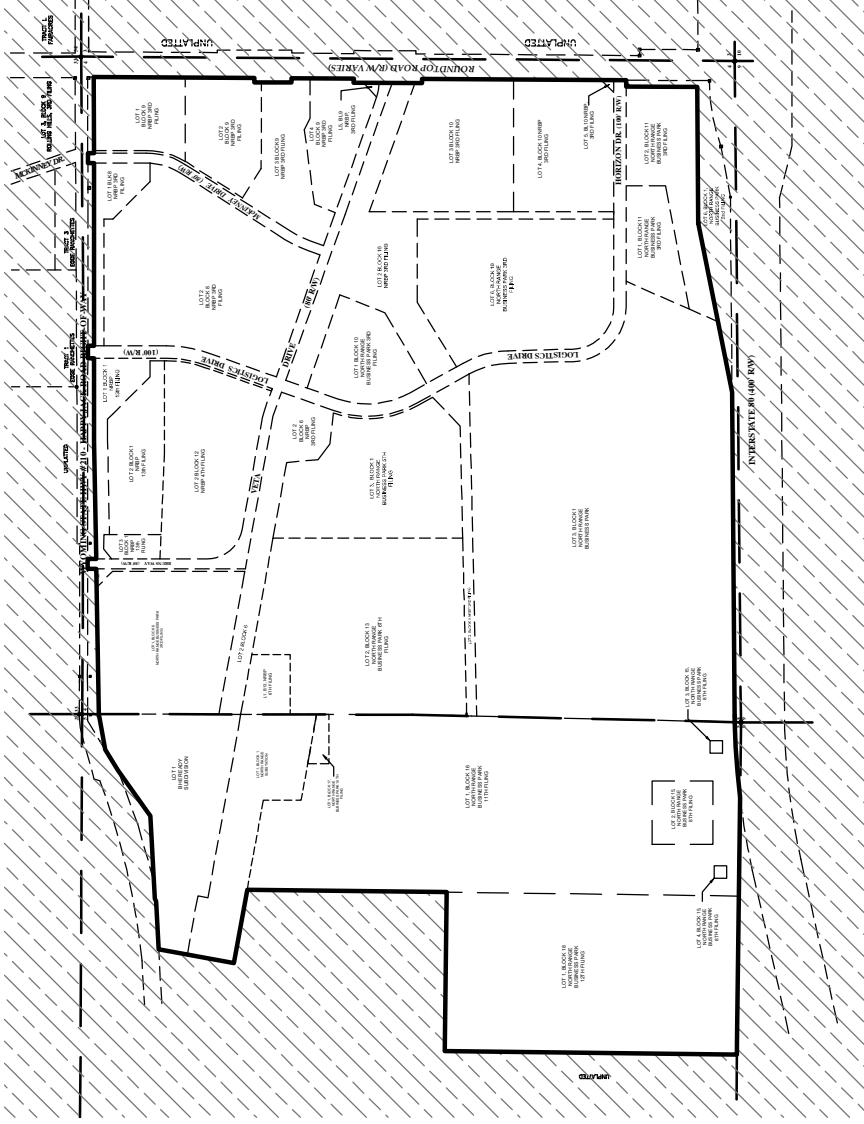
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Scale: 1" = 1000'

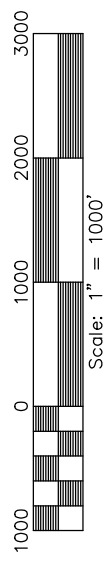
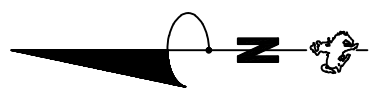
FILING RECORD



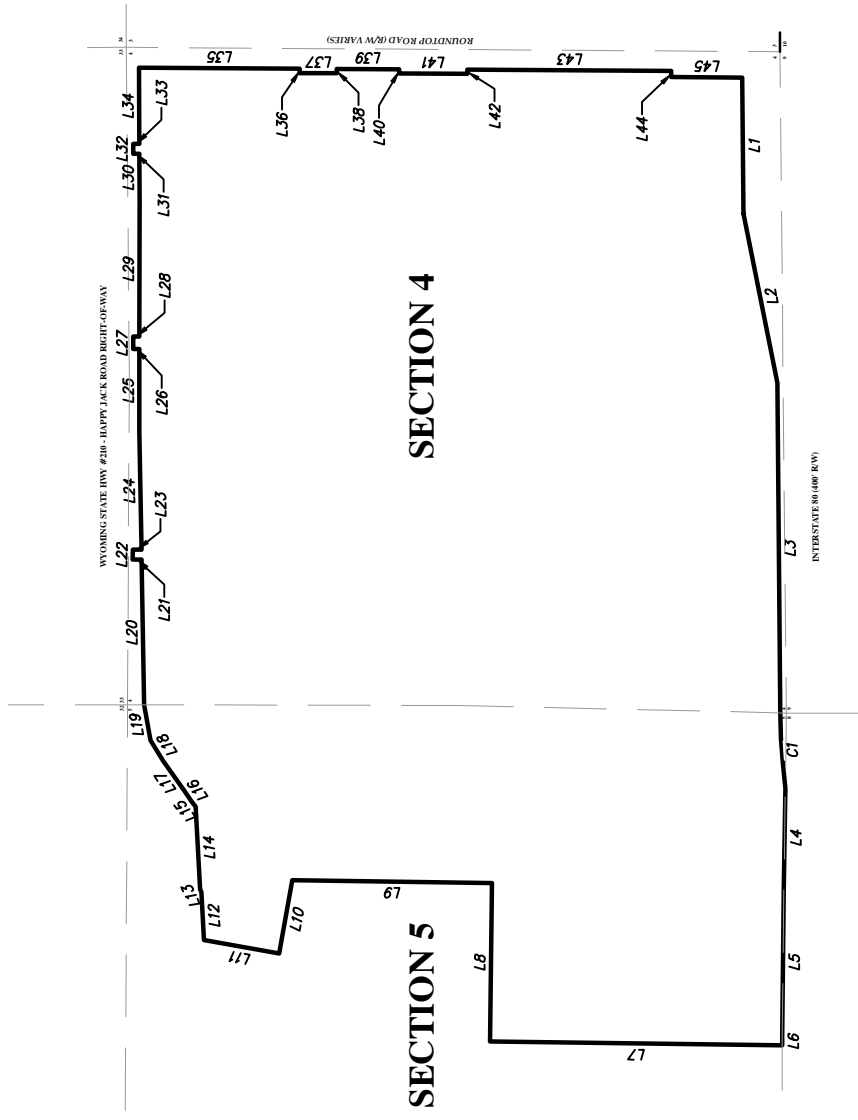


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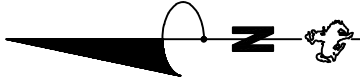
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Scale: 1" = 1000'

FILING RECORD

CURVE TABLE

CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	5° 53' 10"	5929.60'	S86° 05' 14"W	608.90'	609.17'

LINE TABLE

Line #	Bearing	Length
L1	S89° 31' 56"W	1094.80'
L2	S78° 41' 09"W	1389.52'
L3	S89° 31' 22"W	2655.24'
L4	N89° 15' 43"W	791.89'
L5	N89° 15' 43"W	1206.14'
L6	N89° 55' 40"W	70.82'
L7	N0° 44' 26"E	2350.70'
L8	S89° 15' 43"E	1276.96'
L9	N0° 44' 26"E	1606.77'
L10	N79° 45' 14"W	599.85'
L11	N10° 17' 48"E	614.39'
L12	N86° 46' 01"E	386.87'
L13	N65° 31' 19"E	22.45'
L14	N86° 51' 01"E	667.70'
L15	N52° 45' 09"E	48.07'
L16	N55° 07' 45"E	107.21'
L17	N54° 59' 50"E	293.45'
L18	N58° 21' 24"E	196.59'
L19	N79° 32' 59"E	289.47'
L20	N89° 00' 22"E	1169.86'
L21	N0° 00' 00"E	70.47'
L22	S89° 55' 13"E	80.09'
L23	S0° 04' 20"W	68.90'

LINE TABLE

Line #	Bearing	Length
L24	N88° 57' 27"E	948.93'
L25	S89° 56' 04"E	666.14'
L26	N0° 00' 00"E	50.10'
L27	S89° 56' 35"E	100.00'
L28	S0° 00' 00"E	50.00'
L29	S89° 56' 35"E	1088.30'
L30	N89° 50' 18"E	383.20'
L31	N0° 00' 00"E	50.00'
L32	N89° 50' 18"E	80.00'
L33	S0° 00' 00"E	50.00'
L34	N89° 50' 18"E	611.35'
L35	S0° 20' 06"W	1291.34'
L36	N89° 39' 55"W	35.76'
L37	S0° 12' 50"W	300.00'
L38	S89° 39' 55"E	35.13'
L39	S0° 20' 06"W	500.00'
L40	N89° 39' 55"W	34.07'
L41	S0° 12' 50"W	550.00'
L42	S89° 39' 47"E	32.91'
L43	S0° 20' 06"W	1641.81'
L44	S89° 59' 57"W	50.01'
L45	S0° 20' 06"W	571.80'



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1101 WEST 100TH ST., CHEYENNE, WY. 82001 • (307) 644-7475
756 GILCREIST ST., WHEATLAND, WY. 82201 • (307) 944-0749
www.steelsurvey.com • info@steelsurvey.com

REVISED: 5/2/2024
24181 ANNEX.DWG

NORTH RANGE BUSINESS PARK
SITUATE IN SECTIONS 4 & 5
T13N, R67W OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.



City of Cheyenne
 Planning and Development Department
 2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001
www.cheyennecity.org/PlanningAndDevelopment

Assigned Zone Chart	
Underlying County Zone	Analogous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses